



Power Purchase Agreement

Sri Tirumala Millennium - Association review draft

Draft status: This is not the signing version. It must be populated with society records, final site data, and legal review before execution.

POWER PURCHASE AGREEMENT

For the supply of solar electricity to a residential apartment society under a Bright Roof Power Systems rooftop solar power purchase arrangement

Site-specific working draft for Sri Tirumala Millennium. Not legally reviewed. This draft is adapted from the Bright Roof residential-society PPA template. It must be reviewed by qualified counsel in Telangana before signing. Bracketed placeholders "[[...]]" must be filled from society records, TSSPDCL bills, site survey, and partner decisions.

PARTIES

THIS POWER PURCHASE AGREEMENT ("Agreement") is made and executed on this the [[DD day of MMMM, YYYY]] at Hyderabad, Telangana, India,

BY AND BETWEEN

M/s. BRIGHT ROOF POWER SYSTEMS, a partnership firm duly constituted under the Indian Partnership Act, 1932, having its principal place of business at 8-3-945/8/18&19 Pancom Business Centre, Ameerpet, Hyderabad, 500073, Telangana, represented herein by its authorised Partner(s) [[authorised Bright Roof partner name]] (hereinafter referred to as the "Company", which expression shall, unless repugnant to the context or meaning thereof, include its successors and permitted assigns);

AND

[[Full legal name to verify: Sri Tirumala Millennium Apartment Owners Association / Residents Welfare Association]], a body registered under the [[registration statute to verify from society certificate]] vide Registration No. [[society registration number to collect]] dated [[registration date to collect]], having its registered office at Sri Tirumala Millennium, Nacharam, Hyderabad, Telangana [[full postal address to collect]] (hereinafter referred to as the "Consumer", which expression shall, unless repugnant to the context or meaning thereof, include its successors, lawful office-bearers, and permitted assigns);

The Company and Consumer are hereinafter referred to individually as a "Party" and collectively as the "Parties".

RECITALS

WHEREAS,

A. The Consumer is a registered association of apartment owners / residents of the residential complex known as Sri Tirumala Millennium situated at Sri Tirumala Millennium, Nacharam, Hyderabad, Telangana [[full postal address to collect]] (the "Premises"), and is authorised under its bye-laws and applicable law to enter into this Agreement on behalf of its members for the provision of common utilities including electricity.



B. The Company is engaged in the business of design, financing, installation, ownership, operation, and maintenance of grid-connected rooftop solar photovoltaic power generation systems, and the sale of the electricity generated therefrom to consumers on a per-unit basis under long-term power purchase arrangements.

C. The Consumer desires to reduce its electricity cost and carbon footprint by procuring solar electricity generated on the rooftop of the Premises, and accordingly has invited the Company to install, own, operate, and maintain a rooftop solar photovoltaic power system (the "System") on the Premises and to supply the electricity generated therefrom exclusively to the Consumer on the terms set out herein.

D. The Company has inspected the Premises, examined the sanctioned electrical load and historical consumption of the Consumer, and has agreed to install, own, operate, and maintain the System at its own cost and risk, and to sell the electricity generated by the System to the Consumer at the tariff set out in this Agreement, on the terms and conditions set out below.

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. DEFINITIONS AND INTERPRETATION

1.1 Definitions

In this Agreement, unless the context otherwise requires, the following capitalised terms shall have the meanings set out below:

- *****Applicable Law***** means all laws, rules, regulations, notifications, orders, ordinances, bye-laws, and judicial pronouncements of any Governmental Authority in force in India from time to time and applicable to this Agreement, including without limitation the Electricity Act, 2003, the Telangana State Electricity Regulatory Commission (*****TSERC*****) regulations, the Telangana State Southern Power Distribution Company Limited (*****TSSPDCL*****) grid-connection and net-metering rules, and the Ministry of New & Renewable Energy (*****MNRE*****) guidelines applicable to grid-connected rooftop solar.
- *****Billing Period***** means a calendar month.
- *****Commercial Operation Date***** or *****COD***** means the date on which the System is successfully commissioned, synchronised with the TSSPDCL grid, and begins exporting metered solar energy to the Consumer, as certified jointly by the Parties in the COD Certificate (Schedule 4).
- *****Connected Load***** means the sanctioned electrical load of the Consumer at the Premises under the Consumer Service Number(s) listed in Schedule 1.
- *****Contracted Capacity***** means ****18 kWp**** of solar photovoltaic generation capacity installed under this Agreement, as further described in Schedule 1.
- *****Delivery Point***** means the point at which the AC output of the System is electrically connected to the Consumer's internal electrical network at the Premises, as specified in Schedule 1.
- *****Effective Date***** means the date of execution of this Agreement first written above.
- *****Force Majeure***** has the meaning given in Clause 16.
- *****Governmental Authority***** means any central, state, or local government, statutory or regulatory body, DISCOM, or judicial authority having jurisdiction over any matter arising under this Agreement.
- *****Net Metering Agreement***** means the separate agreement executed between the Consumer and TSSPDCL for grid-connection, net-metering, and export of surplus solar energy, in the standard form prescribed by TSSPDCL.
- *****Premises***** has the meaning given in Recital A and includes the rooftop, riser shafts, inverter room, and cable routes made available to the Company.
- *****Scheduled COD***** means ****[[target commissioning date after site survey, installer quote, and approvals]]****, being the date by which the Company undertakes to commission the System (subject to Force Majeure and delays caused by the Consumer or Governmental Authorities).



- *****"System"***** means the grid-connected rooftop solar photovoltaic power generation system of the Contracted Capacity, including photovoltaic modules, inverters, mounting structures, DC and AC cabling, junction boxes, earthing, protection devices, monitoring hardware and software, net-metering arrangements, and all balance-of-system components, as further described in Schedule 2.
- *****"Tariff"***** means the per-kWh rate payable by the Consumer to the Company for solar energy supplied under this Agreement, as set out in Clause 10 and Schedule 3.
- *****"Term"***** has the meaning given in Clause 5.

1.2 Interpretation

- (a) References to clauses, sub-clauses, and schedules are to clauses, sub-clauses, and schedules of this Agreement.
- (b) Headings are for convenience only and do not affect interpretation.
- (c) The singular includes the plural and vice versa.
- (d) References to "Rs.", "Rupees", and "INR" are to Indian Rupees.
- (e) References to any statute include the rules and regulations made thereunder and any amendment, re-enactment, or replacement thereof.

2. SCOPE AND PROJECT DESCRIPTION

2.1 The Company shall, at its own cost and risk, design, procure, install, test, commission, own, operate, and maintain the System on the Premises for the Term of this Agreement.

2.2 The System shall have a Contracted Capacity of 18 kWp, shall conform to the technical specifications in Schedule 2, and shall be installed in accordance with MNRE guidelines, Central Electricity Authority ("CEA") regulations on grid-connected solar, TSSPDCL net-metering rules, and all other Applicable Law.

2.3 The Company shall sell, and the Consumer shall purchase, all solar energy generated by the System and delivered at the Delivery Point during the Term, on an as-generated basis and on the terms of this Agreement.

2.4 The Consumer shall continue to maintain its existing grid connection with TSSPDCL for the balance of its electricity requirement. Nothing in this Agreement shall be construed to oblige the Consumer to purchase any minimum quantity of solar energy from the Company, except to the extent of energy actually generated by the System and delivered at the Delivery Point (as-generated, no take-or-pay).

3. ROOFTOP LICENCE AND ACCESS

3.1 The Consumer hereby grants to the Company, for the entire Term, an exclusive, irrevocable, royalty-free licence to use the rooftop area of the Premises described in Schedule 1 (the "Licensed Area") for the purposes of installing, owning, operating, maintaining, repairing, upgrading, and ultimately removing the System.

3.2 The licence granted under Clause 3.1 shall be exclusive in respect of solar photovoltaic generation. The Consumer shall not, during the Term, grant any right to any third party, nor install on its own account, any competing solar generation capacity on the same rooftop that would cause shading, reduce generation, or interfere with the System.

3.3 The Consumer shall provide the Company and its authorised personnel, contractors, and agents with reasonable access to the Licensed Area, riser shafts, cable routes, inverter room, and metering points at all reasonable times upon prior intimation, and at all times without prior intimation in the event of an emergency affecting the safety of persons or property.



3.4 The licence under this Clause 3 is a bare licence to enable the Company to operate the System. It does not create any lease, tenancy, easement, or other interest in the Premises in favour of the Company, and the Consumer's ownership of the Premises is not affected.

3.5 The Company shall not use the Licensed Area for any purpose other than as contemplated in this Agreement, and shall at all times comply with the reasonable house rules of the Consumer relating to safety, noise, and working hours.

4. OWNERSHIP OF THE SYSTEM

4.1 The System is, and shall at all times during and after the Term remain, the sole and exclusive property of the Company. The Consumer acknowledges that the System is not a fixture, attachment, or improvement to the Premises, and that notwithstanding physical affixation of any component to the Premises, title to all components of the System shall vest solely in the Company.

4.2 The Consumer shall not, and shall procure that no member or occupant of the Premises shall, tamper with, modify, sell, charge, mortgage, encumber, or otherwise deal with the System or any component thereof.

4.3 The Consumer shall not permit any person to create any lien, charge, or encumbrance over the System, and shall promptly notify the Company in writing of any attempt to do so.

4.4 No handover on Term expiry. For the avoidance of doubt, and unlike a BOOT (Build-Own-Operate-Transfer) arrangement, the System shall not be transferred to the Consumer upon expiry or early termination of this Agreement. End-of-term options are governed exclusively by Clause 19.

5. TERM AND EXTENSION

5.1 This Agreement shall come into force on the Effective Date and shall remain in force for a period of [[15 years, with automatic five-year renewals - to finalise after legal review]] from the COD (the "Initial Term"), unless terminated earlier in accordance with this Agreement.

5.2 Renewal. The Initial Term shall automatically extend for successive periods of five (5) years each (each a "Renewal Term", and together with the Initial Term, the "Term"), unless either Party gives the other Party written notice of non-renewal at least twelve (12) months before the end of the Initial Term or the then-current Renewal Term.

5.3 The Tariff applicable during any Renewal Term shall be the Tariff in effect at the end of the Initial Term / previous Renewal Term, subject to a fresh escalation schedule to be mutually agreed in writing not later than six (6) months before the start of such Renewal Term.

6. DESIGN, INSTALLATION, COMMISSIONING

6.1 The Company shall complete design, installation, testing, and commissioning of the System on or before the Scheduled COD.

6.2 The Company shall at its own cost:

(a) Prepare and submit all drawings, applications, and approvals required from TSSPDCL, TGREDCO, Chief Electrical Inspectorate, and any other Governmental Authority;

(b) Procure all equipment meeting the specifications in Schedule 2;

(c) Carry out civil, electrical, and structural works required for installation in accordance with IS 875 (wind load), IS 800 (steel), IEC 61215 / IEC 61730 (modules), IEC 62109 (inverters), and all other Applicable Law;

(d) Test and commission the System and arrange grid synchronisation with TSSPDCL;



(e) Install revenue-grade bidirectional metering as required under the Net Metering Agreement, and an additional sub-meter at the Delivery Point (the "Solar Meter") to measure generation for billing under this Agreement.

6.3 The Consumer shall at its own cost:

- (a) Provide clear, dry, structurally sound rooftop access to the Licensed Area;
- (b) Execute the Net Metering Agreement with TSSPDCL in its own name and provide a copy to the Company;
- (c) Obtain all internal approvals from its general body / managing committee for this Agreement and the works contemplated herein;
- (d) Provide temporary electricity and water at actual cost for the installation period;
- (e) Sign the COD Certificate (Schedule 4) promptly once all commissioning tests are satisfactorily completed.

6.4 If Scheduled COD is delayed solely by reason of the Company's default (and not by Force Majeure, Consumer default, or Governmental Authority delay), the Company shall pay the Consumer liquidated damages of [[commercial term to finalise after legal review]], which sum is a genuine pre-estimate and not a penalty.

7. OPERATION, MAINTENANCE AND MONITORING

7.1 Throughout the Term, the Company shall, at its own cost, operate and maintain the System in accordance with prudent industry practice for grid-connected rooftop solar systems, including:

- (a) Scheduled preventive maintenance at intervals not less than specified by the equipment manufacturer;
- (b) Module cleaning at a frequency sufficient to maintain performance (not less than once per month during dry season);
- (c) Remote performance monitoring with 24/7 availability of a monitoring dashboard;
- (d) Prompt diagnosis and repair of faults, with response time as set out in Clause 7.3;
- (e) Replacement of defective components at the Company's cost throughout the Term.

7.2 Performance guarantee. The Company guarantees that the System shall deliver a minimum annual Performance Ratio ("PR") of 75% in Year 1, degrading by no more than 0.7% per year thereafter, measured as per IEC 61724. If measured PR in any Contract Year falls below the guaranteed PR (after excluding periods of Force Majeure, grid outage not attributable to Company, and Consumer-caused downtime), the Company shall issue the Consumer a credit equal to the shortfall multiplied by the prevailing Tariff.

7.3 Response times. The Company shall acknowledge any fault notified by the Consumer within four (4) hours and shall restore normal operation within:

- (a) forty-eight (48) hours for software / inverter faults; and
- (b) seven (7) days for faults requiring equipment replacement,

subject to reasonable extensions for Force Majeure and parts lead times beyond the Company's control.

7.4 Monitoring dashboard. The Company shall provide the Consumer with read-only login credentials to a web-based monitoring dashboard displaying real-time and historical generation data, system alerts, and downtime log.

8. SALE AND PURCHASE OF SOLAR ENERGY

8.1 Subject to the terms of this Agreement, the Company shall sell and deliver, and the Consumer shall purchase and take delivery of, all solar energy generated by the System and delivered at the Delivery Point during the Term.

8.2 Title to and risk in the solar energy shall pass from the Company to the Consumer at the Delivery Point.



8.3 Energy exported to the TSSPDCL grid under the Net Metering Agreement (i.e. generation in excess of the Consumer's instantaneous consumption) shall be [[banked / credited / settled]] in accordance with the prevailing TSSPDCL net-metering regulations. Any financial benefit accruing to the Consumer from such exported energy shall belong to the [[Consumer / Company / shared in proportion ____]].

8.4 The Consumer shall not resell or redirect solar energy generated under this Agreement to any third party without the prior written consent of the Company.

9. METERING

9.1 The Solar Meter installed by the Company at the Delivery Point shall be the primary meter for the purposes of billing under this Agreement. The Solar Meter shall conform to Central Electricity Authority (Installation and Operation of Meters) Regulations and be of accuracy class 1.0 or better.

9.2 The Solar Meter shall be jointly read on a monthly basis, at a date and time notified by the Company to the Consumer in advance. Meter readings may be taken remotely if the Solar Meter supports remote data acquisition; in that case, the Company shall share a screenshot / downloadable report with the Consumer along with each invoice.

9.3 Meter testing and calibration shall be carried out at the cost of the Company once every five (5) years, or earlier on written request of the Consumer (in which case the cost shall be borne by the Consumer if the meter is found to be within tolerance, and by the Company if it is outside tolerance).

9.4 In case of meter failure, readings for the affected period shall be estimated based on the average daily generation of the preceding three (3) months during comparable weather conditions, as measured from the monitoring dashboard.

10. TARIFF AND BILLING

10.1 Tariff. The Consumer shall pay the Company for all solar energy delivered at the Delivery Point at the following Tariff:

(a) Tariff mechanism: No installation cost is payable by the Consumer. For each Billing Period, the solar tariff will be set at Rs. 2.00 per kWh below the applicable benchmark grid tariff for the units offset through net metering, subject to the final tariff formula in Schedule 3 (exclusive of taxes);

(b) Tariff benchmark: The benchmark grid tariff shall be calculated from the Consumer's applicable TSSPDCL bill and net-metering treatment for the Billing Period. The parties must finalise whether this means (i) the weighted average effective grid tariff for the offset units, or (ii) the final applicable slab rate for those units. In either case, the Consumer-facing promise is a Rs. 2.00 per kWh discount against the agreed benchmark.

This is a tariff mechanism only. It does not present project capex, vendor quotation, or installation cost to the Consumer.

10.2 GST and other taxes. All amounts payable under this Agreement are exclusive of Goods and Services Tax ("GST") and any other taxes, cesses, or duties, which shall be borne by the Consumer at the applicable statutory rate. The Company shall issue a GST-compliant tax invoice for each Billing Period.

10.3 Invoicing. Within seven (7) days after the end of each Billing Period, the Company shall issue an invoice to the Consumer setting out (a) opening and closing Solar Meter readings, (b) units of solar energy delivered, (c) Tariff applicable, (d) amount payable, (e) GST, (f) net amount, and (g) any credits or adjustments (including PR shortfall credits under Clause 7.2).

10.4 Payment due date. Each invoice shall be payable within fifteen (15) days of the invoice date (the "Due Date").



10.5 Late payment surcharge. Amounts unpaid after the Due Date shall bear simple interest at the rate of 1.25% per month (15% per annum) from the Due Date until payment.

10.6 Mode of payment. Payments shall be made by NACH direct-debit from the Consumer's designated bank account in favour of the Company, in accordance with the NACH mandate executed as Schedule 5. In addition, payments may be made by NEFT / RTGS / IMPS to the Company's bank account set out in Schedule 5. No cash payments shall be accepted.

10.7 Disputed invoices. The Consumer shall pay all undisputed portions of any invoice by the Due Date and shall, within ten (10) days of receipt of the invoice, give written notice of any disputed portion along with reasonable details. Disputed amounts shall be resolved in accordance with Clause 23.

11. PAYMENT SECURITY

11.1 Security Deposit. Prior to the COD, the Consumer shall deposit with the Company an interest-free refundable security deposit equal to [[two (2) or three (3), to finalise]] months' estimated Tariff invoice (the "Security Deposit"). The Security Deposit may be adjusted against unpaid invoices and shall be refunded within thirty (30) days after termination of this Agreement after adjusting any outstanding dues.

11.2 NACH mandate. The Consumer shall execute and maintain throughout the Term a NACH debit mandate in favour of the Company in the form of Schedule 5, authorising the Company to debit the Consumer's designated bank account for amounts due under this Agreement.

11.3 Right to disconnect. If the Consumer fails to pay any undisputed invoice by the date falling thirty (30) days after the Due Date, the Company shall be entitled, after giving seven (7) days' written notice, to electrically isolate the System from the Consumer's internal network (the "Disconnection Right"). During disconnection, the Consumer shall continue to draw electricity solely from the TSSPDCL grid, and no solar energy shall be supplied or billed. Upon full payment of all outstanding dues together with late payment surcharge and a reasonable reconnection fee of Rs. [[reconnection fee to finalise]], the Company shall restore connection within forty-eight (48) hours. Exercise of the Disconnection Right does not limit the Company's other remedies including termination under Clause 18.

12. GRID CONNECTION AND NET METERING

12.1 The Consumer shall, at its own cost, execute the Net Metering Agreement with TSSPDCL and shall maintain such agreement in good standing throughout the Term. The Consumer shall not terminate, surrender, or permit lapse of the Net Metering Agreement without the prior written consent of the Company.

12.2 The Parties shall co-operate in good faith to obtain and maintain all grid-connection approvals, net-metering sanctions, and inspections required by TSSPDCL and the Chief Electrical Inspectorate.

12.3 If TSSPDCL or any Governmental Authority modifies the net-metering framework in a manner that materially affects the economic basis of this Agreement, the provisions of Clause 17 (Change in Law) shall apply.

13. REPRESENTATIONS AND WARRANTIES

13.1 Each Party represents and warrants to the other that:

- (a) It is duly organised and validly existing under Applicable Law;
- (b) It has full power and authority to enter into this Agreement and to perform its obligations hereunder;
- (c) Execution and performance of this Agreement has been duly authorised by all necessary corporate / organisational action;
- (d) This Agreement constitutes a legal, valid, and binding obligation enforceable against it in accordance with its terms;



(e) Execution and performance of this Agreement does not conflict with Applicable Law or any other agreement to which it is a party.

13.2 The Consumer additionally represents and warrants that:

- (a) It is the lawful representative of the apartment owners / residents of the Premises and has obtained all internal approvals (general body resolutions, bye-law approvals) required to enter into this Agreement for the full Term;
- (b) The Premises are structurally sound and capable of supporting the System;
- (c) No third party has any right over the Licensed Area that would interfere with the System;
- (d) The sanctioned load and historical consumption data disclosed to the Company is true and correct in all material respects.

13.3 The Company additionally represents and warrants that:

- (a) It has the technical capability, personnel, and financial resources to perform its obligations;
- (b) All equipment supplied shall be new, of commercial quality, and shall conform to Schedule 2 and Applicable Law.

14. INSURANCE

14.1 The Company shall, at its own cost, throughout the Term, maintain:

- (a) All-risk property insurance covering the System for its full replacement value;
- (b) Third-party liability insurance with a minimum cover of Rs. [[insurance cover to finalise]] per occurrence, covering bodily injury and property damage arising out of the Company's installation, operation, or maintenance of the System;
- (c) Workmen's compensation insurance for the Company's personnel and contractors.

14.2 The Consumer shall maintain its standard building insurance covering the Premises, with an endorsement acknowledging the presence of the System. The Consumer shall not be required to insure the System itself.

14.3 Each Party shall name the other as an additional insured (for liability policies) and loss payee (for property policies) to the extent of their respective interests, and shall provide certificates of insurance on request.

15. LIABILITY AND INDEMNITY

15.1 Liability cap. Save for (i) liability for death or personal injury caused by negligence, (ii) liability for fraud or wilful misconduct, (iii) indemnity obligations under Clause 15.3, and (iv) unpaid Tariff, the aggregate liability of either Party to the other under this Agreement in any Contract Year shall not exceed the total Tariff invoiced in the immediately preceding twelve (12) months (or, in the first year, the projected Tariff for that year).

15.2 Neither Party shall be liable to the other for any indirect, consequential, special, punitive, or exemplary damages, or for loss of profits, revenue, or business opportunity, whether in contract, tort (including negligence), or otherwise.

15.3 Indemnity by Company. The Company shall indemnify the Consumer against losses directly arising from (a) damage to the Premises caused by the Company's negligence or wilful misconduct during installation or operation; (b) bodily injury to any person caused by the System or the Company's personnel; (c) third-party claims for infringement of intellectual property rights in the System; and (d) breach by the Company of its statutory obligations relating to workforce safety.

15.4 Indemnity by Consumer. The Consumer shall indemnify the Company against losses directly arising from (a) damage to the System caused by the Consumer or its members / occupants (other than through ordinary use of



electricity); (b) loss of generation arising from the Consumer's breach of Clause 3 (Access) or Clause 12 (Grid Connection); and (c) unauthorised modification or tampering with the System.

15.5 Roof waterproofing. Where penetrative mounting is used, the Company shall remain responsible for any water ingress caused by such penetrations for a period of five (5) years from the COD. Thereafter, remediation of such issues shall be shared equally between the Parties, unless caused by the Consumer's acts or omissions.

16. FORCE MAJEURE

16.1 A "Force Majeure Event" means any event or circumstance beyond the reasonable control of the affected Party which prevents or materially hinders performance of its obligations under this Agreement, including acts of God, earthquake, flood, cyclone, fire not caused by the affected Party, war, riots, civil commotion, strikes of a nationwide or industry-wide nature, epidemic or pandemic, acts of any Governmental Authority (other than TSSPDCL acts contemplated as ordinary grid operations), and prolonged grid outages exceeding seventy-two (72) continuous hours not caused by the affected Party.

16.2 An affected Party shall notify the other Party in writing as soon as reasonably practicable of the occurrence of a Force Majeure Event and its expected duration. The obligations of the affected Party (other than obligations to make payment of amounts already accrued) shall be suspended for the duration of the Force Majeure Event, and the Term shall be extended by an equivalent period.

16.3 If a Force Majeure Event continues for more than one hundred and eighty (180) continuous days, either Party may terminate this Agreement by written notice, with settlement as per Clause 18.

17. CHANGE IN LAW

17.1 If after the Effective Date there is any change in Applicable Law (including changes to net-metering regulations, tariff orders, GST rates, or import duties) that has a material adverse effect on the cost or economics of performance by either Party under this Agreement, the Parties shall negotiate in good faith an equitable adjustment to the Tariff and/or other terms to restore the affected Party to substantially the same economic position as before the change.

17.2 If the Parties fail to agree on the adjustment within sixty (60) days of the request, the matter shall be referred to dispute resolution under Clause 23.

18. DEFAULT AND TERMINATION

18.1 Consumer Default. Each of the following shall be a "Consumer Default":

- (a) Failure to pay any undisputed amount within thirty (30) days after the Due Date;
- (b) Failure to maintain the Net Metering Agreement or Security Deposit;
- (c) Breach of Clauses 3 (Access), 4 (Ownership), or 8.4 (No resale);
- (d) Any act, omission, or direction of the Consumer that causes physical damage to the System, excluding fair wear and tear;
- (e) Insolvency, winding up, or dissolution of the Consumer.

18.2 Company Default. Each of the following shall be a "Company Default":

- (a) Failure to achieve COD within one hundred eighty (180) days of Scheduled COD, other than by reason of Force Majeure or Consumer Default;
- (b) Abandonment of operation of the System for more than sixty (60) continuous days, other than by reason of Force Majeure, Consumer Default, or grid unavailability;



(c) Persistent failure (three or more occurrences in any twelve-month period) to meet response times under Clause 7.3;

(d) Insolvency, winding up, or dissolution of the Company.

18.3 Cure period. On occurrence of a Default, the non-defaulting Party shall give the defaulting Party written notice specifying the Default. The defaulting Party shall have thirty (30) days from such notice (or, for payment defaults, fifteen (15) days) to cure the Default.

18.4 Termination. If the Default is not cured within the cure period, the non-defaulting Party may terminate this Agreement by written notice with immediate effect.

18.5 Consequences of termination for Consumer Default. On termination for Consumer Default, the Consumer shall pay the Company, as a genuine pre-estimate of loss, a termination payment equal to:

Termination Payment = (a) all accrued and unpaid amounts (including late payment surcharge) + (b) the discounted present value of expected Tariff payments for the balance of the Initial Term, using a discount rate of 10% per annum, net of projected operating costs avoided, or the depreciated book value of the System multiplied by 1.3, whichever is lower + (c) cost of removal and restoration if the Consumer does not agree to purchase the System under Clause 18.6.

18.6 Consumer buy-out option on termination for Consumer Default. On termination for Consumer Default, the Consumer shall have the option, exercisable within thirty (30) days of termination, to purchase the System from the Company at a price equal to 1.3× the depreciated book value of the System (straight-line over 20 years, zero salvage value). Payment shall be made within sixty (60) days. On payment, title transfers free of encumbrances; the Termination Payment under 18.5(b) shall not apply in addition to the buy-out price.

18.7 Consequences of termination for Company Default. On termination for Company Default, the Company shall, at the Consumer's election: (a) remove the System and restore the Licensed Area, at its own cost, within one hundred twenty (120) days; or (b) transfer the System to the Consumer for zero consideration, free of encumbrances, together with all ongoing manufacturer warranties. The Company shall also refund the Security Deposit and any pre-paid amounts.

18.8 Voluntary buy-out after Year 7. The Consumer may, at any time after the seventh (7th) anniversary of the COD and on not less than one hundred eighty (180) days' written notice, elect to purchase the System from the Company at a price equal to 1.3× the then-depreciated book value. On completion of such purchase, this Agreement shall terminate without liability, and the provisions of Clause 19.2 shall apply.

19. END OF TERM

19.1 Default position - renewal. On expiry of the Initial Term, this Agreement shall automatically renew for successive five-year periods in accordance with Clause 5.2, unless either Party gives notice of non-renewal.

19.2 If not renewed. On expiry of the Term without renewal:

(a) The Company shall, at its election, exercised within thirty (30) days before expiry:

- (Option 1) Remove the System and restore the Licensed Area to substantially its pre-installation condition, at the Company's own cost, within one hundred twenty (120) days of expiry; or
- (Option 2) Offer to sell the System to the Consumer at a mutually agreed price (or, failing agreement, the depreciated book value); or
- (Option 3) Enter into a new arrangement with the Consumer on fresh commercial terms.

(b) Until such election is implemented, the Consumer shall continue to permit access to the System and shall not interfere with it.



19.3 No automatic handover. For the avoidance of doubt and notwithstanding anything contained in any MNRE or standard-form template, there is no automatic transfer of the System to the Consumer on expiry of the Term. Transfer shall only occur under a separate instrument and with full consideration paid.

20. ASSIGNMENT

20.1 Neither Party may assign or transfer its rights or obligations under this Agreement without the prior written consent of the other Party (not to be unreasonably withheld), except that:

(a) The Company may assign its rights (including receivables) to a financier / lender as security, and to any affiliate or successor entity on a restructuring or conversion (e.g. conversion from Partnership Firm to LLP or Private Limited), in each case without the Consumer's consent, on notice to the Consumer;

(b) The Consumer may not assign its rights or obligations. A change in the composition of the Consumer's managing committee / office-bearers shall not constitute an assignment, and this Agreement shall remain binding on the Consumer notwithstanding any such change.

21. CONFIDENTIALITY

21.1 Each Party shall keep confidential the commercial and technical terms of this Agreement, and any non-public information obtained from the other in the course of performance, and shall not disclose the same to any third party, except (a) to its professional advisers on a need-to-know basis and under confidentiality obligations; (b) as required by Applicable Law; (c) to lenders / investors under confidentiality obligations; and (d) to the extent the information becomes public through no fault of the disclosing Party.

22. NOTICES

22.1 All notices under this Agreement shall be in writing and shall be sent by (a) registered post with acknowledgement due, (b) courier, or (c) email (with delivery confirmation), to the address of the other Party set out below (or such other address notified by each Party):

To Bright Roof Power Systems:

- Address: 8-3-945/8/18&19 Pancom Business Centre, Ameerpet, Hyderabad, 500073, Telangana
- Attention: [[authorised Bright Roof partner]]
- Email: [[email to confirm]]

To the Consumer:

- Address: Sri Tirumala Millennium, Nacharam, Hyderabad, Telangana [[full postal address to collect]]
- Attention: [[secretary / president of the society]]
- Email: [[email to confirm]]

22.2 Notices shall be deemed delivered (a) three (3) days after posting (for registered post), (b) on date of delivery (for courier), or (c) on the day sent (for email, if sent before 5.00 pm local time on a business day, otherwise the next business day).

23. DISPUTE RESOLUTION

23.1 In case of any dispute, difference, or claim arising out of or in connection with this Agreement, the Parties shall first attempt to resolve the matter amicably through mediation conducted at Hyderabad within thirty (30) days of one Party giving written notice of dispute to the other.



Schedule 1 - Project Description

Item	Detail
Premises address	Sri Tirumala Millennium, Nacharam, Hyderabad, Telangana [[full postal address to collect]]
Consumer Service Number(s) (TSSPDCL)	[[consumer service number list]]
Sanctioned load	20 kW (from project overview; verify against TSSPDCL bill)
Licensed Area (rooftop)	[[usable rooftop area from survey]], plan attached as Exhibit 1-A
Contracted Capacity	18 kWp
Delivery Point	[[delivery point from installer survey]]
Scheduled COD	[[scheduled COD after approvals]]

Schedule 2 - Technical Specifications (BoM)

Component	Make / Model	Quantity	Key ratings
PV Modules	Waree / Premier / TATA / Adhani 610 Wp Bifacial TopCon	30	IEC 61215, IEC 61730; 25-yr linear power warranty
Inverter	Growatt / Deye / Sois / Faston 18 kW On-Grid 3-phase	1	IEC 62109; 8-yr manufacturer warranty
Mounting structure	Galvanised steel, IS 2062 / IS 875 wind-load compliant	1 lot	Non-penetrative where possible
DC cabling, connectors, MC4	TUV-certified	1 lot	-
AC cabling, protection, isolators	As per CEA regulations	1 lot	-
Earthing & lightning protection	IEC 62561 / IS 3043	1 lot	-
Net-meter (bidirectional)	TSSPDCL-approved make	1	Class 1.0
Solar meter	Class 1.0 with RS-485 / Modbus	1	-
Monitoring & dashboard	[[monitoring vendor to confirm]]	1	24/7 remote telemetry

Detailed single-line diagram, structural drawings, and cable schedules attached as Exhibit 2-A.

Schedule 3 - Tariff Schedule

Contract Year	Tariff (Rs./kWh, excl. GST)
1	Benchmark grid tariff minus Rs. 2.00 per kWh, calculated after reviewing the monthly TSSPDCL bill and net-metering treatment.
2 onwards	Same mechanism unless amended in writing after legal and CA review.
All years	No capex, installation cost, vendor quotation, or system cost is presented to the Consumer at signing stage.
Term end	Renewal or non-renewal as per Clauses 5 and 19; no automatic handover.



Schedule 4 - Form of COD Certificate

To be inserted - standard MNRE form adapted.

Schedule 5 - Payment Details and NACH Mandate

- Company bank details: [[bank, account, IFSC to confirm]]
- NACH mandate form: *standard NPCI NACH-2.0 form attached*

Schedule 6 - Form of General Body Resolution of Consumer

To be signed by the AOA/RWA general body authorising execution of this Agreement and the Net Metering Agreement.

- End of Draft v0.1 -